

Tasneem Kazmi v. Madhyanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court (Lucknow Bench) · Division Bench · 12 March 2025 · 2025:AHC-LKO:15338-DB · Writ-C No. 2457 of 2025 · **Writ disposed; process 4.4 indemnity bond if submitted.**

HEADNOTE

A tenant claiming possession is entitled only to have a separate-connection application processed under clause 4.4 of the U.P. Electricity Supply Code, 2005 if an indemnity bond is submitted and tenancy and possession are inquired into; the order confers no title or possession.

FACTUAL SUMMARY

The petitioner sought a writ for a separate electricity connection from Madhyanchal Vidyut Vitran Nigam Limited. She claimed to be a tenant in possession of the premises; rent-tribunal proceedings were pending. Counsel relied on a 21 January 2025 order in another flat-owner case, Mohd. Nooruz Zaman, and on Seema Mansoor and Chandu Khamaru. The licensee's counsel submitted that the petitioner had not furnished an indemnity bond. Notice to opposite parties 5 to 7 was dispensed with.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant connection on indemnity bond

HOLDING

Subject to inquiry into the petitioner's tenancy and possession, if an indemnity bond is submitted the licensee shall process it for grant of a separate electricity connection as per the Supply Code, especially clause 4.4, within four weeks. The order confers no right of possession or title and does not prejudice opposite parties 5 to 7. ¶ 5-6

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond

A tenant claiming possession is entitled only to have a separate-connection application processed under clause 4.4 of the U.P. Electricity Supply Code, 2005 if an indemnity bond is submitted and tenancy and possession are inquired into; the order confers no title or possession. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — TITLE AND POSSESSION

The order confers no right of possession or title and does not prejudice opposite parties 5 to 7 in pending or future proceedings concerning the premises. ¶ 6

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Mohd. Nooruz Zaman v. Madhyanchal Vidyut Vitran Nigam Ltd.</i> Writ-C No. 525 of 2025 (order dated 21.01.2025) Allahabad High Court	Cited by the petitioner as a similar flat-owner case.		3	Referred
<i>Seema Mansoor v. U.P. Power Corporation Ltd.</i> (2015) 1 All LJ 44 Allahabad High Court	Cited by the petitioner in support of a claim to a separate connection.		4	Referred

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Sri Chandu Khamaru v. Nayan Malik</i> (2011) 12 SCC 314 Supreme Court	Cited by the petitioner in support of a claim to a separate connection.		4	Referred

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.